

HOW TO WRITE A PERSONAL INJURY DEMAND LETTER

(WITH A SIMPLE TEMPLATE YOU CAN USE TODAY)

If you've been hurt in an accident and you're trying to get the insurance company to take your claim seriously, a demand letter can be a significant first step. It's always best to retain attorneys like us to help you with this process. With that said, this short guide will walk you through:

- What a demand letter is
- When it makes sense to send one
- What to include (and leave out)
- A simple template you can fill in and send

Let's get into it.

WHAT IS A DEMAND LETTER?

A demand letter is a written summary of:

- What happened
- How you were hurt
- What it has cost you (medical bills, lost income, pain, etc.)
- What you want in return (usually financial compensation)

This letter is usually sent to an insurance company, a business, or sometimes an individual, and it says: "Here's what happened, here's what I've been through, and here's what I'm asking for to make it right."

It's not a lawsuit—but it sometimes leads to one if things are unresolved.

WHEN SHOULD YOU USE A DEMAND LETTER?

A demand letter might be helpful if:

- You have finished (or nearly finished) your medical treatment
- You have medical records and bills in hand
- You have lost wages, dealt with pain, or had other impacts on your life
- You want to try settling before going to court

That said, not every situation calls for a DIY demand letter. If your injuries are severe, the insurance company is acting shady, or you're feeling overwhelmed, it's probably worth talking to a lawyer first. We'd be more than happy to discuss your options with you.

WHAT TO INCLUDE IN A DEMAND LETTER

Here's a quick checklist:

- **Your contact info**
- **Their contact info** (usually the insurance company)
- **Date of the incident**
- **What happened** (short and clear summary)
- **Your injuries**
- **Your medical treatment**
- **Your expenses and other losses**
- **The amount of money you're requesting**
- **A deadline to respond** (usually 30 days)
- **Your Signature**

Here is a sample demand letter template you can use:



SAMPLE PERSONAL INJURY DEMAND LETTER

Your Name

123 Main Street
Your City, State ZIP
(123) 456-7890
your@email.com

Date

Adjuster's Name

Insurance Company
Name
Company Address
City, State ZIP

RE: Demand for Settlement – Claim #123456 – Date of Loss: 01/01/2024

Dear [Adjuster's Name],

On [Date of Accident], I was involved in a [Short description of Incident] at [Location of Accident.] Your insured, [Driver's Name], [Longer description of the incident].

As a result of this incident, I suffered [Description of injuries]. I received treatment at [Name of hospital] and followed up with [Description of therapy]. I have attached medical records and bills totaling [Amount].

In addition to my medical expenses, I [Summary of injury impacts. For example, "missed two weeks of work and continue to experience daily pain and limited mobility"].

This has impacted both my job and personal life. [It's usually a good idea to elaborate some - just remember that if there is a lawsuit later, everything you say in your letter will be admissible against you in court.]

Based on these damages, I am requesting a settlement of [\$\$ amount] to resolve this matter. Please review the attached documents, which include:

- Medical records and bills
- Proof of lost wages
- Photos of the accident and injuries

Please respond within 30 days of this letter. If I have not heard back from you within that time frame, I will consider my other options for pursuing recovery, including hiring an attorney.

Sincerely,

[Your Name]

[Signature, if mailing]

A FEW EXTRA TIPS

- **Stick to the facts.** This isn't the time for rants or emotional appeals.
- **Be polite, even if you're mad.** It goes a long way.
- **Don't exaggerate.** If something's unclear, explain it simply.
- **Keep a copy** for your records.

NEED HELP? WE'RE HERE.

Writing a demand letter can help get the ball rolling—but sometimes, it needs more than paperwork.

If you're hurt, stressed, or unsure of what to do next, we're happy to discuss it with you. There's no pressure or cost to reach out.

Schedule a free consultation.

Or call us at **704-897-0490**

We're trial-tested and client-focused. We can review your case, and if it makes sense for us to step in, we'll be ready.

